



## CHAPTER xlvii.

An Act to empower the mayor aldermen and burgesses of the county borough of Bolton to construct additional waterworks and execute a street improvement to confer upon them powers of running trolley vehicles to make further provision with reference to their gas undertaking and to the improvement health and good government of the borough and for other purposes. A.D. 1925.  
[31st July 1925.]

**W**HEREAS the borough of Bolton (hereinafter referred to as "the borough") is a county borough subject to the Acts relating to municipal corporations and is under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") acting by the council:

And whereas the Corporation are the owners of the water undertaking of the borough and supply water within the borough and elsewhere:

And whereas it is expedient that the Corporation should be empowered to construct the waterworks described in this Act and to acquire lands and easements for the purposes thereof and that the other provisions relating to the said water undertaking which are contained in this Act should be enacted:

And whereas it is expedient that the Corporation should be empowered to execute the street work and



A.D. 1925. — improvement described in this Act and to acquire lands therefor and to acquire lands for the other purposes specified in this Act and to utilise such last-mentioned lands in the manner authorised by this Act :

And whereas by virtue of the Bolton Corporation Act 1901 and the Bolton Corporation Act 1922 the Corporation have certain powers of running omnibuses and it is expedient that such powers of running trolley vehicles as are contained in this Act should be conferred upon the Corporation :

And whereas the Corporation are the owners of the gas undertaking of the borough and it is expedient that the powers with reference to that undertaking which are contained in this Act should be conferred upon them :

And whereas it is expedient that further powers should be granted to the Corporation for the improvement and better government and for the protection of the health of the borough as in this Act provided :

And whereas it is expedient that borrowing powers for the purposes of this Act and for the other purposes hereinafter referred to should be conferred upon the Corporation :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas estimates have been prepared by the Corporation for the purchase of lands and easements and for the execution of the works by this Act authorised and for the other purposes referred to in this Act and such estimates are as follows :—

|                                                                                                                     | £       |
|---------------------------------------------------------------------------------------------------------------------|---------|
| For the construction of waterworks and the acquisition of lands and easements therefor - - - - -                    | 70,500  |
| For the general purposes of the water undertaking - - - - -                                                         | 183,600 |
| For the execution of the street work and improvement authorised by this Act and the acquisition of lands therefor - | 15,000  |
| For the acquisition of land for the purposes of general town improvement and for educational purposes -             | 201,500 |
| For the provision of omnibuses - - - -                                                                              | 15,000  |
| For purposes of the gas undertaking -                                                                               | 200,000 |



And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1925.

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and plans showing the lands which the Corporation may acquire compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

## PART I.

### PRELIMINARY.

1. This Act may be cited as the Bolton Corporation Short title.  
Act 1925.

2. This Act is divided into Parts as follows :—

Act divided  
into Parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Street work.

Part IV.—General provisions as to works.

Part V.—Lands &c.

Part VI.—Trolley vehicles and tramways.

Part VII.—Gas.

Part VIII.—Maternity Homes.

Part IX.—Finance.

Part X.—Miscellaneous.



A.D. 1925.

Incorporation of  
Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exception and modification—

(a) Section 127 (relating to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 is not incorporated with this Act;

(b) The bond required by section 85 of the said Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

(2) The Waterworks Clauses Act 1847 except—

(a) The words “ with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner ” in section 44;

(b) Sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) Section 83 (with respect to the yearly receipt and expenditure of the undertakers) :

(3) The Waterworks Clauses Act 1863 :

(4) The Gasworks Clauses Act 1847 :

(5) The Gasworks Clauses Act 1871 except sections 8 (For appointment of receiver) and 35 (Accounts &c.) :

(6) The clauses and provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and also section 16 (Works to be executed) of that Act :

Provided that in the said provisions of the Railways Clauses Consolidation Act 1845 “ the company ” shall mean the Corporation “ the railway ” shall mean the waterworks authorised by this Act and “ the centre of the railway ” shall mean the centre line as shown on the



deposited plans of the aqueduct conduit or line or lines of pipes (Work B) authorised by this Act and the top water lines of the service reservoirs (Works A and C) so authorised.

A.D. 1925.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1875 have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

Interpreta-  
tion.

“ The borough ” means the county borough of Bolton;

“ The Corporation ” means the mayor aldermen and burgesses of the borough acting by the council of the borough;

“ The borough fund ” and “ the borough rate ” mean respectively the borough fund and the borough rate of the borough;

“ The district funds ” and “ the district rates ” mean respectively the district funds and the district rates of the borough;

“ The Act of 1922 ” means the Bolton Corporation Act 1922;

“ The former Acts ” means the Act of 1922 and the Acts and Orders mentioned in the First Schedule to that Act;

“ The town clerk ” “ the treasurer ” “ the medical officer ” and “ the sanitary inspector ” respectively mean the town clerk the treasurer the medical officer of health and any sanitary inspector of the borough and include any person duly appointed by the Corporation to discharge temporarily the duties of any of those officers;

“ The waterworks ” means the waterworks and the works in connection therewith authorised by this Act;

“ The water undertaking ” means the water undertaking of the Corporation as authorised by the former Acts and by this Act;

“ Water revenue ” means all moneys received by the Corporation in respect of the water undertaking other than borrowed moneys and other



A.D. 1925. moneys which ought to be carried to the account  
of capital;

“The improvement” means the widening and  
improvement of streets authorised by this Act;

“The Corporation tramways” means all tramways  
for the time being belonging to or leased to or  
worked by the Corporation;

“The tramway undertaking” means the tramway  
undertaking of the Corporation as for the time  
being authorised;

“Tramway revenue” means all moneys received  
for or in relation to the tramway undertaking  
other than borrowed moneys and other moneys  
which ought to be carried to the account of  
capital;

“The omnibus undertaking” means the omnibus  
undertaking of the Corporation as for the time  
being authorised;

“Trolley vehicle” means a mechanically propelled  
vehicle adapted for use upon roads without rails  
and moved by electrical power transmitted  
thereto from some external source;

“Trolley vehicle route” means any route along  
which the Corporation are for the time being  
authorised by or under the provisions of this  
Act to use trolley vehicles;

“The trolley vehicle undertaking” means the  
undertaking relating to trolley vehicles  
authorised by or under the provisions of this  
Act;

“Road authority” means the authority body or  
person by or at the expense of whom any road  
or part of a road in relation to which the  
expression is used is maintained and repaired;

“The gas undertaking” means the gas under-  
taking of the Corporation as for the time being  
authorised;

“Gas revenue” means all moneys received by the  
Corporation in respect of the gas undertaking  
other than borrowed moneys and other moneys  
which ought to be carried to the account of  
capital;



- “ The gas limits ” means the limits within which the Corporation are for the time being authorised to supply gas;
- “ Maternity home ” means any premises used or represented as being or intended to be used (whether regularly or on any occasion) for the reception of a woman or women for the purposes of childbirth where any payment or reward is made or given by or on behalf of any woman received therein in respect of such reception but does not include any house flat or other self-contained premises not regularly so used which is taken and held by or for any woman for the purpose of accommodating her during her confinement or for the purpose of any such treatment as aforesaid;
- “ The Lands Clauses Acts ” means those Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;
- “ The arbitrator ” means the arbitrator to whom any question of disputed purchase-money or compensation under this Act is referred;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ Sanitary purposes ” means and includes the making and maintaining of streets and highways and scavenging (except the repairing maintaining improving (other than widening) and scavenging of such roads as are referred to in section 19 (Expenses of main roads in borough added area) and in subsection (3) of section 55 (As to Astley Bridge cemetery tramways and sewage works &c.) of the Bolton Turton and Westhoughton Extension Act 1898) and private improvements lighting sewerage prevention of nuisances the preservation of the health and the improvement of the borough and the powers of the Corporation in relation to the River Croal and other streams and includes also the manufacture and supply of gas and the production and supply of electricity;
- “ Daily penalty ” means a penalty for each day on which an offence is continued after conviction thereof.



A.D. 1925.

PART II.

WATER.

Power to  
make  
waterworks.

5. Subject to the provisions of this Act the Corporation may in the county of Lancaster and in the lines and situations and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain the waterworks described in this section.

The said waterworks are the following (that is to say) :—

A service reservoir (Work A) in the borough in the enclosure numbered 677 in the parish of Bolton on the  $\frac{1}{2500}$  scale Ordnance map (edition of 1909) Lancashire—sheet lxxxvi. 16;

An aqueduct conduit or line or lines of pipes (Work B) in the borough commencing in Chorley New Road and terminating at or in the said service reservoir (Work A);

A service reservoir (Work C) in the urban district of Turton in the enclosures or one of the enclosures respectively numbered 680 and 853 in the parish of Turton on the  $\frac{1}{2500}$  scale Ordnance map (edition of 1910) Lancashire—sheets lxxxvii. 1 and 2 or one of those sheets.

Limits of  
deviation  
for water-  
works.

6. In the construction of the waterworks the Corporation may deviate laterally from the lines or situations thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards.

Subsidiary  
waterworks.

7. The Corporation may upon any lands delineated on the deposited plans and for the time being belonging to them make place and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the water undertaking or any works comprised therein but nothing in this section shall exonerate



the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1925.  
—

8. Subject to the provisions of this Act the water-works shall for all purposes whatsoever (inclusive of the levying and recovery of water rents rates and charges) be deemed part of the water undertaking as if they had been authorised by or included or referred to in the former Acts. Water-works to form part of water undertaking.

9. Section 30 (As to water rate on small tenements) of the Bolton Improvement Act 1865 shall be read and have effect as if the thirty-first day of March had been therein referred to instead of the thirtieth day of June. Amending section 30 of Bolton Improvement Act 1865.

### PART III.

#### STREET WORK.

10. Subject to the provisions of this Act the Corporation may in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain the following street work in the borough (that is to say):— Power to execute street work &c.

A widening and improvement of Deansgate on the southern side thereof and Oxford Street on the eastern side thereof.

11. In the construction of the improvement the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards. Limits of deviation for improvement.

12.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans relating to the improvement the Corporation may in connection with the improvement and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the improvement and may make diversions widenings or alterations of the lines or Subsidiary works in connection with improvement.



A.D. 1925. levels of any existing streets for the purpose of connecting the same with the improvement or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe or electricity or telephone wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

#### PART IV.

##### GENERAL PROVISIONS AS TO WORKS.

Temporary  
stoppage  
of streets.

13. The Corporation during and for the purposes of the execution of the improvement may break up and also temporarily stop up and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bonâ fide going to or from any house or railway station in the street from passing along and using the same Provided that the Corporation shall provide reasonable access for foot passengers bonâ fide going to or from any such house or railway station.

Application  
of certain  
provisions  
of Bolton  
Tramways  
and Im-  
provement  
Act 1897.

14. The provisions of sections 38 (Power to alter pipes &c.) and 46 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works &c.) of the Bolton Tramways and Improvement Act 1897 shall extend and apply mutatis mutandis to and in relation to the works by this Act authorised.

#### PART V.

##### LANDS &c.

Power to  
take lands  
for works.

15. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described



in the deposited book of reference which they may require for the purposes of the works by this Act authorised or (in the case of the widening or improving of any street) for the providing of space for the erection of buildings adjoining or near to any such street. A.D. 1925.

**16.** Subject to the provisions of this Act the Corporation may enter upon and take and may hold and use for the purposes hereinafter respectively specified the lands in the borough hereinafter referred to or any part or parts thereof so far as those lands are delineated on the deposited plans and described in the deposited book of reference (that is to say):— Power to take other lands.

(1) For the purposes of general town improvement the lands described in Part I. of the schedule to this Act; and

(2) For the erection of buildings for educational purposes and for other purposes connected with education the lands described in Part II. of the said schedule.

**17.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

**18.—(1)** The Corporation may in lieu of acquiring any lands for the purposes of the waterworks where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts. Corporation may acquire easements only in certain cases.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the



A.D. 1925. provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Compensation in case of recently created interest.

19. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say) :—

(1) The arbitrator shall not take into account any building erected or any improvement or alteration made or any interest in land created after the first day of November one thousand nine hundred and twenty-four and before the date of the passing of this Act if in the opinion of the arbitrator the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act :

(2) Subject as is hereinafter in this section provided the arbitrator shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the arbitrator materially enhances the value of such premises; or



(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act :

A.D. 1925.  
—

- (3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(a) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said first day of November and before the date of the passing of this Act :

- (4) The Corporation shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

20. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four

Power to  
Corporation  
to enter  
upon  
property



A.D. 1925.  
—  
for survey  
and valuation.

hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Extinction  
of private  
rights of  
way.

**21.**—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Limit of  
time for  
compulsory  
purchase  
of lands.

**22.** The powers of the Corporation for the compulsory purchase of lands under this Act shall cease on the thirty-first day of December one thousand nine hundred and twenty-eight.

For protection of  
London  
Midland and  
Scottish  
Railway  
Company.

**23.** The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not under the powers of this Act acquire any land or property belonging to the company and coloured red on the plan marked "A" (hereinafter referred to as "the signed plan") signed by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have respectively been deposited in the Private Bill Office of the House of Commons and in the Parliament Office of the House of Lords and with the Corporation and with the company) and shall not acquire any land or property belonging to the company



coloured blue on the signed plan unless and until the company determine to discontinue the use thereof for any purpose of their railway undertaking :

A.D. 1925.

(2) If and whenever the company so determine as aforesaid with respect to any of the land or property coloured blue on the signed plan they shall from time to time forthwith thereafter give to the Corporation notice in writing of such determination specifying the land or property to which such determination relates and the Corporation may at any time within three months after the receipt of any such notice give to the company notice in writing requiring them to sell to them and thereupon the company shall sell and the Corporation shall purchase the land or property specified in the notice given by the company as aforesaid :

(3) The consideration to be paid by the Corporation for any such purchase as aforesaid shall be such a sum as failing agreement shall be determined in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement but for this purpose the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 shall not apply.

**24.** The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health Provided that in the case of the sale of any lands for the time being held by the Corporation in their capacity of local education authority for the borough nothing in this section shall authorise the Corporation to apply the proceeds of sale otherwise than

Proceeds  
of sale of  
surplus  
lands.



A.D. 1925. subject to the provisions of section 115 of the Education Act 1921.

Incorporation of certain provisions of former Acts relating to lands.

**25.** Section 41 (Correction of errors &c. in deposited plans and book of reference) of the Bolton Tramways and Improvement Act 1897 and section 26 (Corporation may use their own lands for purposes of Act) of the Bolton Corporation Act 1901 shall extend and apply to and in relation to the deposited plans and the deposited book of reference and to lands required for the purposes of this Act as if those sections were in this Act re-enacted with special reference thereto.

Power to stop up streets.

**26.** The Corporation may stop up—

(a) (i) the streets or parts of streets comprised in the lands (a) and (c) described in Part I. of the schedule to this Act;

(ii) the streets or parts of streets within the limits of deviation marked on the deposited plans referred to in the Act of 1922 for the Widening No. 3 authorised by that Act;

(iii) the streets or parts of streets comprised in the areas described in Part III. of the Second Schedule to the Act of 1922; and

(iv) the following streets or parts of streets (that is to say):—

Howell Croft North;

Howell Croft South;

Old Hall Street North;

Old Hall Street South;

Victoria Square (western side); and

So much of Ashburner Street as is westward of the eastern side of Coronation Street; or

(b) from time to time any portion or portions of the said streets and parts of streets;

and thereupon all rights of way over the streets or parts of streets or portions thereof stopped up shall be extinguished but no such street or part of a street or portion thereof shall be stopped up unless the Corporation are owners in possession of all houses and lands on



both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree  
Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement : A.D. 1925.

Provided also that notwithstanding the stopping up of the streets or parts or portions thereof under this section the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from such streets or parts or portions of streets any telegraphic line of the Postmaster-General which is on or under the same and the Corporation shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require :

Provided further that any such removal as aforesaid shall be effected within six months of the receipt by the Postmaster-General of a notice in writing from the Corporation requesting such removal.

**27.** The Corporation may utilise—

- (i) the lands (a) and (c) described in Part I. of the schedule to this Act (if and to the extent to which they acquire those lands under the powers of this Act); and
- (ii) the lands described in Part III. of the said schedule

Powers with reference to certain lands to be acquired.

or any of those lands or any part or parts thereof respectively (including the site of any streets or parts of streets comprised in any of the said lands) for the erection of municipal offices police courts and offices libraries art galleries museums or other municipal buildings or for markets or other municipal purposes and for the laying out of streets and roads and may hold and retain the said lands or any part thereof for those purposes and may sell let exchange or otherwise dispose of any parts of the said lands not required for the said purposes.



A.D. 1925.

—  
Power to  
develop  
lands &c.

28.—(1) The Corporation may lay out and develop and erect and maintain shops offices warehouses and other like buildings and construct pave flag channel and kerb streets roads and ways on—

- (i) any lands within the limits of deviation for the improvement as marked on the deposited plans which shall be acquired by them under the powers of this Act and shall not be required for the purposes of the improvement; and
- (ii) any of the lands (a) and (c) described in Part I. of the schedule to this Act and the lands described in Part III. of that schedule (including the site of any streets or parts of streets comprised in any of the said lands) already belonging to the Corporation or acquired by them under the powers of this Act;

and may sell lease exchange or otherwise dispose of any such shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this Act or which may be in the neighbourhood of the works by this Act authorised or any of them with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose



and the Corporation may pay or receive money for equality of exchange. A.D. 1925.

**29.** The provisions of sections 85 (Powers with reference to certain lands to be acquired) and 102 (Power to develop lands &c.) of the Act of 1922 shall extend and apply to the site of the streets and parts of streets referred to under the numbers (ii) (iii) and (iv) in the section of this Act of which the marginal note is "Power to stop up streets" as if the sites of the said streets and parts of streets formed part of the lands referred to in the said sections 85 and 102 respectively.

Extension  
of pro-  
visions of  
sections 85  
and 102 of  
Act of 1922.

**30.** The lands described in Part III. of the schedule to this Act and (if and to the extent to which they are acquired by the Corporation under the powers of this Act) the lands (a) and (c) described in Part I. of the said schedule shall be held by the Corporation under and subject to the provisions of the Municipal Corporations Act 1882.

Certain  
lands to be  
held under  
Municipal  
Corpora-  
tions Act  
1882.

## PART VI.

### TROLLEY VEHICLES AND TRAMWAYS.

**31.** The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may with the consent of the Minister of Transport and subject to such conditions as he may impose use the same along any street (whether within or beyond the borough) along which they are for the time being authorised to construct or work tramways and along any other street in the borough which the Corporation think it necessary or convenient to use for the purpose of connecting trolley vehicle routes or of obtaining access thereto from any dépôt garage building or work of the Corporation :

Power to  
use trolley  
vehicles.

Provided that as respects any street outside the borough the powers conferred by this section shall not be exercised except with the consent of the local authority of the district and (where the local authority are not the road authority) the consent of the road authority also but so that the consent of a road authority (not being the local authority of the district) shall not be unreasonably withheld and that any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.



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—  
Minister of  
Transport  
may  
authorise  
new trolley  
vehicle  
routes.

**32.**—(1) (a) If at any time hereafter the Corporation desire to use trolley vehicles upon any road (whether within or beyond the borough) as defined by the Tramways Act 1870 (other than any such streets as are referred to in the section of this Act of which the marginal note is “Power to use trolley vehicles”) they may make application to the Minister of Transport and the Minister of Transport is hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any road or roads to which such application relates and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

(b) The Minister of Transport shall not make any Provisional Order under this section relating to any road outside the borough except with the consent of the local authority of the district and (where the local authority are not the road authority) the consent of the road authority also. Provided that the consent of a road authority (not being the local authority of the district) shall not be unreasonably withheld and that any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

(2) No such application shall be entertained by the Minister of Transport unless the Corporation shall—

(a) have published once in each of two successive weeks in the months of October and November or one of them notice of their intention to make such application in some newspaper or newspapers circulating in the area to which the application relates;

(b) have also published such notice once in the month of October or November in the *London Gazette*;

(c) have posted for fourteen consecutive days in the months of October and November or one of them in conspicuous positions in each of the roads to which such application relates a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Minister of Transport any objections to the grant of such application.



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(3) The Minister of Transport may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister of Transport shall consider any such application and may if he thinks fit direct an inquiry to be held in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this section shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(7) The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Minister of Transport in connection with the preparation and making of any such Provisional Order or in connection with any



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Electrical  
equipment  
for trolley  
vehicles.

**33.** For the purpose of working trolley vehicles along any street or road under the powers of this Act the Corporation may utilise all or any of the standards brackets conductors mains cables wires posts poles and other apparatus and equipment for the time being belonging to the Corporation and placed or erected for the purpose of working tramways by electrical power along such street or road and may exercise the powers conferred upon them by any existing enactments authorising the placing erection and maintenance of any such standards brackets conductors mains cables wires posts poles and other apparatus and equipment as aforesaid :

Provided that no post or other apparatus shall be erected upon the carriageway of any public street or road under the powers referred to in this section except with the consent of the Minister of Transport.

Corporation  
to have ex-  
clusive right  
of using  
apparatus.

**34.** Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected maintained or used by them for the purpose of working trolley vehicles under the powers of this Act and any person (except by agreement with the Corporation) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

For further  
protection  
of London  
Midland and  
Scottish  
Railway  
Company.

**35.** The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect :—

(1) In this section the word "apparatus" means standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles under or in pursuance of this Part of this Act :

(2) The apparatus where the same shall be laid upon across under or over any railway or bridge or the approaches thereto or other work belonging to or maintainable by the company or will



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otherwise affect the same shall be executed so as not to affect injuriously the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the company or in case of difference between them and the Corporation to be determined by an arbitrator to be appointed in accordance with the provisions of this Act Provided that if the company do not within twenty-eight days after such submission signify their disapproval of such plans sections and specifications they shall be deemed to have approved thereof All such apparatus shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined by arbitration and under the superintendence (if the same be given) and to the reasonable satisfaction of the company The Corporation shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

- (3) The Corporation shall on demand pay to the company the reasonable expense of watching the railway and property of the company which shall be necessary during and in consequence of the execution or repair by the Corporation under or in pursuance of this Part of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :
- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of



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the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway canal or other work belonging to or maintainable by the company or any traffic thereon :

(5) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or canals or to any company or person using the same by or by reason of the execution or failure of any of the apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors in connection with the apparatus or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :

(6) If the company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway or canal thereunder or thereover the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if after reasonable notice they shall give such superintendence) but no such



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working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

- (7) The Corporation shall from time to time pay to the Company any additional expense which the company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the works or apparatus :
- (8) If and when the company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed under or in pursuance of this Part of this Act the Corporation shall (if reasonably required by the company) in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (9) If having regard to the proposed position of any apparatus of the Corporation authorised by or in pursuance of this Part of this Act when considered in relation to the position of the works of the company at any point where any apparatus will be constructed over or under the railway canal or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall



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be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the company by the Corporation :

- (10) If any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to and determined by an engineer to be appointed (failing agreement between the company and the Corporation) by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other of them) and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Trolley  
vehicles to  
form part  
of tramway  
under-  
taking.

**36.** Subject to the provisions of this Part of this Act the trolley vehicle undertaking shall be deemed to form part of the tramway undertaking. Provided that in the accounts of the Corporation relative to the tramway undertaking the income and expenditure upon and in connection with trolley vehicles shall so far as may be practicable be distinguished from the income and expenditure on or in connection with the remainder of such undertaking.

Adaptation  
of roads.

**37.—**(1) (a) Before the Corporation commence to run trolley vehicles over any road or part of a road outside the borough it shall be determined by agreement between the Corporation and the road authority or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Act of a trolley vehicle service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of



paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run trolley vehicles over the road or part of a road or bridge in question. A.D. 1925.  
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(c) If the Corporation give notice in writing to the road authority that they intend to run trolley vehicles over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run trolley vehicles over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of this subsection the expression "county bridge" shall include every bridge maintainable by a county council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall



A.D. 1925. include every bridge maintainable by a district council; and in respect of such bridge the district council shall be deemed to be the road authority.

(2) Any payment made to a road authority under this section in respect of any main road retained by them under subsection (2) of section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that section shall be credited to the county council in ascertaining the amount payable by them under either of the said subsections of the Local Government Act 1888.

(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(4) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

Application  
of Tram-  
ways Act  
1870 to  
trolley  
vehicles.

**38.**—(1) The following provisions of the Tramways Act 1870 shall so far as the same are applicable apply with respect to the trolley vehicles authorised by or under the provisions of this Act and such provisions shall be read and have effect as if the works to be constructed or adapted in the streets or roads for moving the trolley vehicles by electrical power were tramways; and as if the said trolley vehicles were carriages used on tramways:—

Part II. (Relating to the construction of tramways) except sections 25, 28, and 29;

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority. Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to license drivers conductors &c.);



- Section 49 (Penalty for obstruction of promoters in laying out tramway); A.D. 1925.  
Section 50 (Penalties for wilful injury or obstruction to tramways &c.);  
Section 51 (Penalty on passengers practising frauds on the promoters);  
Section 53 (Penalty for bringing dangerous goods on the tramway);  
Section 56 (Recovery of tolls penalties &c.);  
Section 60 (Reserving powers of street authorities to widen &c. roads);  
Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

**39.** The following enactments shall extend and apply with respect to the trolley vehicles authorised by this Act as if those provisions were with all necessary modifications re-enacted in this Act and as if the said trolley vehicles were carriages used on a tramway or omnibuses.

Application  
to trolley  
vehicles of  
certain  
provisions  
of Corpora-  
tion's Acts.

**The Bolton Tramways and Improvement Act 1897—**

- Section 8 (Tramways not to be opened until certified by Board of Trade);  
Section 17 (Provisions as to motive power);  
Section 18 (Special provisions as to use of electric power);  
Section 19 (Byelaws);  
Section 20 (Incorporation of section 9 of the Act of 1893).

**The Bolton Corporation Act 1901—**

- Section 13 (Power to attach brackets &c. to buildings);  
Section 14 (Cheap fares for labouring classes) as amended by section 53 (Increase of tolls and charges) of the Act of 1922.



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The Act of 1922—

- Section 40 (As to electrical works);
- Section 41 (For protection of Post Office telegraph lines);
- Section 42 (Use of tramway posts &c. by Postmaster-General);
- Section 47 (Agreements with local authorities as to use of tramways for sanitary and other purposes);
- Section 48 (Use of Corporation tramways for carriage of road materials &c.);
- Section 51 (Regulations by Corporation);
- Section 63 (Application of revenue of omnibus undertaking); and
- Part V. (General provisions as to tramways and omnibuses).

Tramway  
tolls and  
charges and  
application  
to trolley  
vehicles of  
powers of  
charging on  
tramways.

**40.**—(1) In addition to the amendments of section 22 (Tolls and charges) of the Bolton and Suburban Tramways Order 1878 effected by section 53 (Increase of tolls and charges) of the Act of 1922 the said section 22 shall be read and have effect as if the words “beyond any integral number of miles” had been omitted therefrom.

(2) The said section 22 (as amended by the said section 53 and by this section) and section 54 (Periodical revision of tramway fares and charges) of the Act of 1922 shall extend and apply to the trolley vehicles of the Corporation.

Conveyance  
of mails.

**41.** The Corporation shall perform in respect of the trolley vehicles provided under this Act such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

Duties on  
licences  
for trolley  
vehicles.

**42.** Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for the trolley vehicles authorised by this Act as hackney carriages.

Vehicles not  
to be deemed  
light loco-  
motives or  
motor cars.

**43.**—(1) The trolley vehicles authorised by this Act shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall



they be deemed to be motor cars within the meaning of any of the provisions of the Motor Car Act 1903 (except subsection (1) of section 1 of that Act and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles.

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(2) The trolley vehicles authorised by this Act shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

**44.** It shall not be lawful for the Corporation elsewhere than along any route along which they are for the time being authorised to construct or work a tramway to work any trolley vehicle service over any bridge belonging to or repairable by the London Midland and Scottish Railway Company (in this section referred to as "the company") except subject to the provisions contained in this section (that is to say):—

As to  
railway  
bridges of  
insufficient  
strength.

(1) The Corporation shall at least one month before commencing to work such service give written notice to the company specifying the bridge and the axle weight when fully loaded (hereinafter called "the axle weight") of the vehicles proposed to be used in such service. If for twenty-eight days after the giving of such notice no objection is made by the company then it shall be lawful for the Corporation (subject to the provisions of subsection (3) of this section) to work over the said bridge a service of trolley vehicles of an axle weight not exceeding that specified in such notice:

(2) If within twenty-eight days after the service of such notice by the Corporation the company object in writing to the proposed service on the ground that the bridge referred to in the notice is not of sufficient strength to enable it to carry trolley vehicles of the axle weight specified in the notice then (in any case in which the Corporation do not dispute the



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allegation of the company as to the insufficiency of the strength of the said bridge or in which it is determined by arbitration as hereinafter provided that the strength of the said bridge is so insufficient as aforesaid) the Corporation may by written requisition call upon the company to strengthen or reconstruct such bridge so as to enable it to carry trolley vehicles of the axle weight specified in the notice and the company shall thereupon so strengthen or reconstruct (as the occasion may require) such bridge and the Corporation shall on demand repay to the company the cost reasonably incurred by them in so doing. After such bridge shall have been so strengthened or reconstructed it shall be lawful for the Corporation (subject to the provisions of subsection (3) of this section) to work over the said bridge a service of trolley vehicles of an axle weight not exceeding that specified in the notice :

- (3) No trolley vehicle shall be taken across any such bridge so as to meet or pass any other trolley vehicle or any locomotive or heavy motor car (as defined by the Heavy Motor Car Order 1904) upon such bridge :
- (4) If any difference shall arise between the Corporation and the company as to the sufficiency or insufficiency of the strength of any such bridge to carry trolley vehicles of the axle weight specified in any notice given by the Corporation as aforesaid or as to any amount to be paid by the Corporation under subsection (2) of this section such difference shall be referred to and determined by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference but pending the decision of such arbitrator as to the sufficiency or insufficiency of the strength of any bridge it shall not be lawful to work any service of trolley vehicles



over any bridge in respect of which an objection shall have been made by the Company in accordance with the provisions of this section: A.D. 1925.  
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- (5) If any such strengthening or reconstruction as aforesaid involves an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the company shall be deemed to be "undertakers" within the meaning of the said Act. Provided that any expenditure incurred by the company in connection with any such alteration shall be deemed to be part of the cost of the strengthening or reconstruction of the bridge.

**45.**—(1) The trolley vehicles authorised by this Act and the electrical equipment thereof shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport. Approval of trolley vehicles and turning points by Minister of Transport.

(2) Before any trolley vehicle route which includes a turning point is equipped for use or a new turning point on any trolley vehicle route is arranged plans of the turning points shall be submitted to the Minister of Transport for approval.

**46.**—(1) The Corporation and any local authority empowered to run trolley vehicles or omnibuses in any borough or urban or rural district adjacent to the borough or adjacent to any borough or urban or rural district in which any route over which the Corporation are for the time being empowered to run trolley vehicles or omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the trolley vehicle or omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts under which such services are authorised. Working and other agreements.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance (subject to the provisions of this Act) of any trolley



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(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say) :—

- (a) The working user management and maintenance of any trolley vehicles omnibuses lands depôts buildings sheds and property provided in connection with any such trolley vehicle or omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;
- (b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of trolley vehicles omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;
- (c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any trolley vehicle or omnibus service of the contracting parties;
- (d) The payment collection and apportionment of the fares and charges and other receipts arising from any such trolley vehicle or omnibus service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any trolley vehicle or omnibus service lands depôts buildings sheds or property beyond the borough otherwise than with the consent of the local authority of the district within which such trolley vehicle or omnibus service lands depôts buildings sheds or property are situate. Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.



**47.** All regulations and byelaws relating to the tramways of the Corporation made in pursuance of the Tramways Act 1870 or of any other statutory enactment and for the time being in operation so far as the same are applicable and except so far as may be otherwise provided in any such regulation or byelaw made or amended after the passing of this Act shall with the necessary modifications apply to the omnibus undertaking and the trolley vehicle undertaking.

Tramway regulations to apply to omnibus undertaking and trolley vehicle undertaking.

**48.** The provisions of section 50 (Power for Corporation to suspend traffic) of the Act of 1922 shall extend and apply to the omnibuses and trolley vehicles of the Corporation as if they were part of the Corporation tramways.

Applying section 50 of Act of 1922 to omnibuses and trolley vehicles.

**49.** The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the omnibuses or trolley vehicles of the Corporation.

Corporation not to be liable to claims for extraordinary traffic.

**50.** Notwithstanding anything contained in this Act the following provisions for the protection of the South Lancashire Tramways Company (in this section called "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

For protection of South Lancashire Tramways Company.

- (1) If and so long as the company run an efficient service of tramcars along any road outside the boundary for the time being of the borough along which any tramway which at the date of the passing of this Act is owned by leased to or worked by the company is laid the Corporation shall not under the powers of this Act without the consent of the company under their common seal run trolley vehicles along any continuous length exceeding half a mile of that road so as to compete with such tramway so long as the same continues to be owned or worked by or leased to the company. Provided that the company shall not for the purposes of this section be deemed to have failed to run an efficient service of tramcars in any case in which any



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inefficiency of the service is a necessary consequence of a strike unforeseen accident or circumstance beyond the control of the company :

- (2) Any question at any time arising between the Corporation and the company as to whether or not the company are running an efficient service of tramcars within the meaning of this section or as to whether any such competition as is referred to in subsection (1) of this section exists or would exist shall be determined by an arbitrator to be agreed upon between the parties or (failing such agreement) to be nominated by the Minister of Transport on the application of either party after notice in writing to the other and the provisions of the Arbitration Act 1889 shall subject as aforesaid apply to the determination of any such question.

For protection of  
Lancashire  
United  
Tramways  
Limited.

**51.** Notwithstanding anything contained in this Act the following provisions for the protection of the Lancashire United Tramways Limited (in this section called "the limited company") shall unless otherwise agreed in writing between the Corporation and the limited company apply and have effect (that is to say) :—

- (1) If and so long as the limited company run an efficient service of omnibuses along any road beyond the boundary for the time being of the borough along which omnibuses are run by the limited company at the date of the passing of this Act the Corporation shall not under the powers of this Act run trolley vehicles along any continuous length exceeding one mile of that road so as to compete with such omnibuses of the limited company. Provided that the limited company shall not for the purposes of this section be deemed to have failed to run an efficient service of omnibuses in any case in which any inefficiency of the service is a necessary consequence of a strike or unforeseen accident or circumstance beyond the control of the limited company :
- (2) Any question at any time arising between the Corporation and the limited company as to whether or not the limited company are running



an efficient service of omnibuses within the meaning of this section or as to whether any such competition as is referred to in subsection (1) of this section exists or would exist shall be determined by an arbitrator to be agreed upon between the parties or (failing such agreement) to be nominated by the Minister of Transport on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the determination of any such question.

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**52.** Except as provided by the section of this Act of which the marginal note is "As to railway bridges of insufficient strength" nothing in this Part of this Act shall impose any obligation upon or enlarge any obligation of any railway or canal company to strengthen adapt alter or reconstruct any bridge or road maintainable by them respectively.

As to  
bridges  
and roads  
maintain-  
able by  
railway  
and canal  
companies.

**53.**—(1) The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of the tramway undertaking.

Accounts of  
tramway  
under-  
taking to  
be furnished  
to Minister  
of Trans-  
port.

(2) Section 75 (Annual accounts of tramway undertaking to be sent to Minister of Transport) of the Act of 1922 is hereby repealed.

## PART VII.

### GAS.

**54.** The Corporation may on the application of the owner or occupier of any premises within the gas limits abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act or in any of the former Acts Provided that the Corporation shall not without the consent of the London Midland and Scottish Railway Company lay down or place any pipe or work in any street not dedicated to public use where such street belongs to that company and is used by them for the purpose of their

Power to  
lay gas pipes  
in private  
streets.



A.D. 1925. — railways but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be referred to and determined by an arbitrator to be appointed (failing agreement between the company and the Corporation) by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other of them) and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Relief from  
obligation  
to supply.

**55.** Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Corporation is in the opinion of an arbitrator appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the gas limits for which such works have been provided (so far as such requirements could reasonably have been foreseen) the Corporation notwithstanding anything contained in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use—

- (a) a new supply of gas for the premises of any person demanding such supply at any time after the date of this Act; or
- (b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value of the gas)

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Corporation. Provided that the foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the Corporation—

- (i) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Corporation may reasonably require; or



- (ii) to make such payment or payments to the Corporation (in addition to any payments to be made from time to time for gas supplied to the applicant) as the Corporation may reasonably require
- A.D. 1925.  
—

(according as the Corporation may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the Corporation in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Corporation may reasonably demand. Provided also that if any question shall arise under the provisions of this section between the Corporation and the applicant as to the sufficiency of the distribution works of the Corporation or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the Corporation or as to the nature or amount of the security demanded by the Corporation such question shall be referred to and determined by an arbitrator to be appointed (failing agreement between the Corporation and the applicant) by the Board of Trade on the application of either party after notice in writing to the other of them and the decision of such arbitrator shall be final and binding. Provided also that in determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say):—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Corporation may be called upon to supply gas to the applicant;
- (b) the capital expenditure which the Corporation would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and



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(c) how far such capital expenditure may become unproductive to the Corporation in the event of the cesser of the new or increased supply :

Subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any arbitration under this section.

As to mode  
of cutting  
off gas  
supplies.

**56.**—(1) In any case in which the Corporation are by virtue of any enactment relating to the gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Corporation without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Corporation) and any person who shall re-connect such service pipe with the meter without the consent of the Corporation shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847 :

Provided that if and so soon as the matter complained of has been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Corporation subject to the provisions of section 22 of the Gasworks Clauses Act 1871 shall have and may exercise the like powers of entry as are exerciseable under that section.

Expenses  
of re-  
connecting  
discon-  
tinued  
supplies of  
gas.

**57.** In any case in which in consequence of any default on the part of the occupier of any premises the Corporation have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Corporation the expenses of reconnecting the supply and the Corporation shall not be under any obligation to supply gas to such occupier until he shall have made good the default and paid such expenses.

Removal  
of fittings  
where gas  
supply dis-  
continued.

**58.** The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the Corporation by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied



with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire all or any of the pipes meters fittings or apparatus belonging to the Corporation.

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**59.** If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas charges and meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse supply of gas to persons in debt for other premises.

**60.** A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation.

Notice to discontinue supply of gas.

**61.** The Corporation may within the gas limits lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Provided that the provisions of section 27 of the Bolton Corporation Act 1872 shall apply for the benefit of the London Midland and Scottish Railway Company to any works constructed laid down or executed in exercise of the powers conferred by this section.

Power to lay pipes for ancillary purposes.

**62.—(1)** The Corporation may by notice in writing require a consumer of gas supplied by the Corporation and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises upon which the engine is in use or to keep any anti-fluctuator fixed and used by the consumer in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

Anti-fluctuators to be used with gas engines.



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(2) If the consumer after any such notice as aforesaid fails to fix and use an efficient anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Corporation may cease to supply him with gas.

(3) The Corporation may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Corporation and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order and repair may take off remove test and inspect the anti-fluctuator such taking off removing testing and inspecting to be done at the expense of the Corporation if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an "anti-fluctuator" means an apparatus for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Period of  
error in  
defective  
gas meters.

**63.** In the event of any meter used by a consumer of gas being tested in manner provided for by the regulations made by the Board of Trade under the Gas Regulation Act 1920 and being proved to register erroneously within the meaning of the said regulations such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Corporation.

Gas fittings  
let for hire  
to continue  
property of  
Corporation.

**64.—**(1) Any gas stoves gas engines and other apparatus fittings or appliances (all of which are in this section referred to as "fittings") let for hire by the Corporation shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all



times continue to be the property of and removable by the Corporation and shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof. A.D. 1925.

(2) For the purposes of this section fittings disposed of by the Corporation on terms of payment by instalments shall until the whole of the instalments have been paid be deemed to be fittings let on hire by the Corporation.

(3) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any such fittings are or shall be fixed.

**65.**—(1) Notwithstanding anything contained in the Acts relating to the gas undertaking the price to be charged by the Corporation for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Corporation and the person taking such supply. Power to vary price according to purpose for which gas supplied.

(2) Provided that the Corporation shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

**66.** When any person has for the purposes of a stand-by only a supply of gas laid on by the Corporation to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes the Corporation shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by the Corporation not exceeding forty shillings for any one quarter of the year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a less sum : As to premises using electricity or other gas.

Provided that—

(a) in fixing the amount of such minimum charge the Corporation shall have regard to the probable maximum supply of gas which



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might at any time be required for such premises; and

- (b) no such minimum sum as aforesaid shall be fixed in the case of any premises in respect of which gas is supplied by the Corporation only through a meter of not greater capacity than a No. 3 standard meter or a meter having a nominal capacity of less than ten lights.

Price of  
gas to be  
uniform  
throughout  
gas limits.

67. As from the date or respective dates next after the passing of this Act of the reading of the indices of the meters through which the Corporation supply gas within so much of the gas limits as is beyond the radius of two miles referred to in section 82 (Maximum price of gas) of the Bolton Corporation Act 1872—

- (a) the Corporation shall not charge for gas supplied by them for any purpose beyond the said radius a greater sum per thousand cubic feet than the sum per thousand cubic feet for the time being charged by them for gas supplied for a like purpose within that radius; and

- (b) the agreements made between the Corporation of the one part and the Horwich Urban District Council of the other part and dated respectively the twenty-seventh day of January one thousand eight hundred and ninety-six the first day of May one thousand nine hundred and seven and the first day of October one thousand nine hundred and thirteen shall be and are hereby annulled.

## PART VIII.

### MATERNITY HOMES.

Registra-  
tion of  
maternity  
homes.

68.—(1) On and after the first day of January one thousand nine hundred and twenty-six (which date is in this Part of this Act referred to as “the prescribed date”) it shall not be lawful for any person to carry on a maternity home within the borough unless the name of such person and the premises used or represented as being or intended to be used for the purpose of such home are registered with the Corporation.



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(2) Any person requiring registration in respect of any such home shall make application in writing to the Corporation and shall in such application state—

- (a) his full name;
- (b) his age nationality and technical qualifications (if any);
- (c) his private address or in the case of an application by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the persons directly or indirectly responsible for the management of such company society association or body;
- (d) the name under which and the address at which such home is carried on or proposed to be carried on; and
- (e) such further information (if any) as the Corporation may reasonably require with respect to the person or premises to be registered or the number of patients to be accommodated at any one time and the equipment in such premises;

and when making such application shall pay to the Corporation such fee as they may fix not exceeding five shillings.

(3) Every person carrying on a maternity home at the date of the passing of this Act and requiring registration in respect thereof shall make application for such registration within one month after the date or (if more than one) the latest date of publication of the advertisements with regard to this Part of this Act referred to in the section of this Act whereof the marginal note is "Notice of provisions of this Part of Act to be given."

(4) Subject as in this section provided the Corporation shall as soon as reasonably practicable after the receipt of an application under the provisions of this section (and not later in the case of an application under subsection (3) of this section than the prescribed date) register the name of the applicant and the premises specified in his application.



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(5) The Corporation by order to be served on the person carrying on or proposing to carry on a maternity home may refuse to register the name of such person or the premises used or represented as being or intended to be used for the purposes of such home or may cancel the registration of such person or premises on the ground that—

- (a) such person is under the age of twenty-one years; or
- (b) such person is unsuitable to carry on such home; or
- (c) the premises or their equipment are unsuitable for the purposes of a maternity home; or
- (d) the premises are used or intended to be used for the accommodation at any one time of an excessive number of patients; or
- (e) the premises or any other premises used for any purpose in connection with such first-mentioned premises or with any business or occupation carried on therein are being used for any immoral purpose.

(6) Before making any such order the Corporation shall give to the person proposed to be served therewith not less than seven days' previous notice in writing stating their intention to make the order and the grounds on which the order is proposed to be made and on written application made to them by such person within seven days after the giving of such notice they shall afford to such person an opportunity of being heard against the order.

(7) Any such order cancelling any registration shall take effect at the time specified in the order not being less than fourteen days after the service thereof but in the event of an appeal against any such order the order shall not come into operation unless and until it has been confirmed on appeal or the appeal has been abandoned.

(8) Any person aggrieved by any such order may appeal to a court of summary jurisdiction provided that such appeal is made within fourteen days after the order has been served upon him.

The court after considering any representations made on behalf of the Corporation may if it thinks fit



confirm such order or direct the Corporation to withdraw such order and as soon as reasonably practicable the Corporation shall give effect to such direction.

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**69.**—(1) The Corporation may make byelaws prescribing the records to be kept with respect to the patients received the children born and the business carried on at a maternity home and also with respect to the cause of death of any patient or child dying in such home and the holding of any inquest on any such patient or child and requiring the notification to the Corporation of any death occurring thereat.

Byelaws  
as to  
maternity  
homes.

(2) Every person carrying on a maternity home shall keep exhibited in a suitable place (to be approved by the Corporation) in such home a copy of the byelaws in force under this Part of this Act.

**70.** Any officer duly authorised by the Corporation in that behalf may subject to such regulations (if any) as may be made by the Corporation at all reasonable times enter and inspect any premises which are used or which such officer has reasonable cause to believe are used for the purposes of a maternity home and inspect the entries in any records required to be kept in connection therewith.

Powers as  
to entry and  
inspection.

**71.** Subject to the provisions of this Part of this Act—

Penalties  
for offences  
in respect of  
maternity  
homes.

(1) Every person who carries on a maternity home in contravention of the provisions of this Part of this Act shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a penalty impose any period of imprisonment not exceeding three months:

(2) Every person who—

(a) refuses to permit any officer of the Corporation to enter or inspect any premises which such officer is authorised under the provisions of this Part of this Act to enter and inspect or to inspect the records to be kept pursuant to any byelaw made under the



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said provisions or obstructs any such officer in the execution of his duty under such provisions or under the provisions of any such byelaw as aforesaid; or

(b) carries on a maternity home in contravention of the provisions of any such byelaw; or

(c) after the expiration of a period of seven days from the receipt of notice in writing from the Corporation that the registration of any maternity home has been refused or cancelled under the provisions of this Part of this Act issues publishes or displays or causes to be issued published or displayed any advertisement relating to such home;

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds :

(3) The court may in addition to imposing a penalty under this section order the cancellation of the registration :

Provided that a person who has appealed to a court of summary jurisdiction in accordance with the provisions of this Part of this Act against an order made by the Corporation thereunder cancelling registration shall not until such order has been confirmed on appeal or unless and until the appeal has been abandoned be liable to any proceedings under this section for the offence of carrying on a maternity home in contravention of the provisions of this Part of this Act or of any byelaw made thereunder.

Directors of  
companies  
to be  
personally  
liable for  
penalties.

**72.** Where any company registered under the Companies Acts 1862 to 1907 or under the Companies Acts 1908 to 1917 or any Act amending the same commits any offence for which a penalty is provided by this Part of this Act proceedings may be taken in respect of such offence against all or any of the directors and managers of such company as well as or instead of against the company and each such director or manager shall be liable on conviction to the like penalty as if he were the



person committing the offence unless he proves to the satisfaction of the court— A.D. 1925.

- (1) that the act which constituted the offence took place without his knowledge consent or connivance; and
- (2) that he was not guilty of any negligence in regard to securing the proper execution of this Part of this Act.

**73.**—(1) Subject as hereinafter provided the provisions of this Part of this Act shall not apply in the case of a maternity home carried on by a duly registered medical practitioner with respect to which there has been lodged with the Corporation a certificate in a form to be approved by them and signed by two duly registered medical practitioners practising or residing in the borough not being in partnership with such first-mentioned medical practitioner or with each other and not having any financial or other interest in such home to the effect that the premises used or represented as being or intended to be used for such home and the equipment provided at such premises are in all respects suitable for the purpose and that the medical practitioner carrying on or proposing to carry on such home is a suitable person to carry on the same.

Saving for  
maternity  
homes  
carried on  
by medical  
practi-  
tioners.

(2) Provided that any such certificate shall not be valid—

(a) with respect to any person or premises other than the person or premises specified therein;  
or

(b) for a period extending beyond the thirty-first day of January in the year next following the date of the certificate.

**74.**—(1) Notwithstanding anything contained in this Part of this Act the foregoing provisions thereof shall not apply in the case of—

Saving for  
certain  
premises.

(a) any hospital infirmary institution or other establishment maintained or controlled by any Government department or local authority or any other authority or body constituted by Parliament or incorporated by Royal Charter;  
or



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(b) any hospital for the time being recognised by any committee or body administering either of the publicly subscribed funds known respectively as the Hospital Sunday Fund and the Hospital Saturday Fund as a hospital to which grants from either of such funds may be made; or

(c) any institution or home for the training of persons desirous of becoming midwives which is for the time being approved by the Central Midwives Board constituted under the Midwives Acts 1902 and 1918; or

(d) any maternity home in which only relatives of the person carrying on such home are received for the purposes of childbirth.

(2) For the purposes of this section the expression "relatives" means sisters daughters grand-daughters nieces aunts or mothers by consanguinity or affinity and in the case of persons of illegitimate birth persons who would be so related if legitimate.

As to  
appeal.

75. Any person deeming himself aggrieved by any order or conviction made by a court of summary jurisdiction under the provisions of this Part of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal.

Notice of  
provisions  
of this Part  
of Act to  
be given.

76.—(1) The Corporation shall give public notice of the effect of the provisions of this Part of this Act by advertisement in two or more newspapers circulating in the borough and otherwise in such manner as they think sufficient.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

## PART IX.

### FINANCE.

Expenses of  
execution  
of Act.

77. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except



such expenses as are to be paid out of borrowed money) shall be paid as follows (that is to say) :— A.D. 1925.

- (1) Expenses incurred for sanitary purposes out of the district funds and the district rates :
- (2) Expenses incurred for purposes of the water-works undertaking out of the water revenue :
- (3) Expenses incurred for purposes of the omnibus undertaking or the trolley vehicle undertaking out of the revenue of those undertakings respectively and if in the case of either of the said undertakings the revenue thereof be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the tramway revenue :
- (4) Expenses incurred for purposes of the gas undertaking out of the gas revenue and if in any year that revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the district funds and district rates :
- (5) Expenses incurred for all other purposes (not otherwise provided for in this Act) out of the borough fund and the borough rate :

Provided that as respects such purposes as are referred to in the foregoing paragraphs (2) and (3) respectively if in any year the water revenue or the tramway revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the borough fund and the borough rate.

**78.**—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied

Power to  
borrow.



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A.D. 1925. thereby shall respectively be "the prescribed period")  
mentioned in the fourth column thereof (namely) :—

| Purpose.                                                                                                   | Amount.            | Charges.                                                       | Period for Repayment.                     |
|------------------------------------------------------------------------------------------------------------|--------------------|----------------------------------------------------------------|-------------------------------------------|
| (1) (a) For the construction of the waterworks and the acquisition of lands and easements therefor.        | £ 70,500           | The water revenue and the borough fund and the borough rate.   | Sixty years from date of borrowing.       |
| (b) For the general purposes of the water undertaking.                                                     | 183,600            |                                                                | Forty years from date of borrowing.       |
| (2) For the construction of the improvement and the acquisition of lands therefor.                         | 15,000             | The tramway revenue and the borough fund and the borough rate. | Fifty-five years from date of borrowing.  |
| (3) For the acquisition of land for the purposes of general town improvement and for educational purposes. | 201,500            | The borough fund and the borough rate.                         | Sixty years from date of borrowing.       |
| (4) For the provision of omnibuses for the purposes of the omnibus undertaking.                            | 15,000             | The tramway revenue and the borough fund and the borough rate. | Eight years from date of borrowing.       |
| (5) (a). For the provision of gas meters.                                                                  | 10,000             | The gas revenue and the district funds and the district rates. | Ten years from date of borrowing.         |
| (b) For the general purposes of the gas undertaking.                                                       | 190,000            |                                                                | Twenty-five years from date of borrowing. |
| (6) For payment of the costs and expenses of obtaining this Act.                                           | The sum requisite. | The borough fund and the borough rate.                         | Five years from the passing of this Act.  |

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such money as may be necessary for any of the purposes of this Act other than for the purposes of Part VI. (Trolley vehicles and tramways) and such additional moneys as may be necessary for any purpose (other than such last-mentioned purposes) referred to in subsection (1) of this section and may with the consent of the Minister of Transport as



respects the said Part VI. borrow such money as may be necessary for any of the purposes of that Part. A.D. 1925.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister with whose consent the money is borrowed.

79. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Section  
234 of  
Public  
Health Act  
1875 not  
to apply.

80. The provisions of the following sections of the Act of 1922 shall extend and apply for the purposes of this Part of this Act as if those provisions had been re-enacted in this Act with any necessary modifications (that is to say):—

Application  
of certain  
financial  
provisions  
of Act of  
1922.

Section 176 (Mode of payment off of money borrowed);

Section 177 (Sinking fund);

Section 179 (Incorporating certain sections of the Acts of 1898 and 1901); and

Section 193 (Receipt in case of persons not sui juris).

81. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application  
of money  
borrowed.

82.—(1) The treasurer shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of this Act.

Return  
respecting  
instalments  
to Minister  
of Health.



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(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the treasurer shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The foregoing provisions of this section shall be substituted for any provisions of the former Acts requiring an annual return to be made to the Minister with regard to the repayment of debt.

## PART X.

### MISCELLANEOUS.

Provisions  
as to  
processions  
in streets.

83.—(1) Any person or persons intending to organise or form a procession in or through the streets of the borough for the purposes of holding a meeting show or entertainment (other than processions which are regularly held in or through such streets) shall give to the Corporation written notice thereof and of the route



proposed to be taken and of the time at which it will take place by leaving such notice at their head police office forty-eight hours at least (exclusive of Sundays) previous to the time fixed for the holding of such procession.

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—

(2) The watch committee of the council of the borough may prescribe the route to be taken by any procession of which notice is required to be given as aforesaid in or through the streets of the borough and may prescribe any districts or streets of the borough in through or across which any such procession shall not assemble or pass.

(3) If any procession to which this section applies—

(a) passes through any street in the borough—

(i) without notice thereof having been given as aforesaid; or

(ii) otherwise than in accordance with the terms of such notice; or

(b) takes any route within the borough other than such as may be prescribed by the said watch committee as aforesaid; or

(c) assembles or passes in through or across any district or street of the borough in through or across which such procession is prohibited from assembling or passing by any prescription of the said watch committee;

the person or each or any of the persons organising or conducting such procession shall be liable to a penalty not exceeding twenty shillings.

**84.**—(1) Where it is shown that any animal or article liable to be seized under section 116 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 and found in the possession of any person was sold to him by another person for the food of man (the proof that the same was not sold for the food of man resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the said section 117 unless he proves that at the time he sold the animal or article he did not know and had no reason to believe that it was in such condition.

Penalty on  
original  
vendor of  
unsound  
food.



A.D. 1925.

(2) Where any animal or article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said animal or article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 and by this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article.

Prohibiting  
emission  
from works  
of waste  
products  
of manu-  
facturing  
processes.

**85.**—(1) From and after the passing of this Act it shall not be lawful to cause or permit the emission or discharge from any works or premises in the borough into the external air of waste substances (not being of a gaseous or liquid nature) produced by or arising from the preparation treatment or manufacture of silk wool cotton flax or hemp or goods manufactured wholly or partly from those materials or any of them.

(2) Any person offending against the provisions of this section shall be deemed to cause a nuisance liable to be dealt with summarily in manner provided by the Public Health Act 1875 and the provisions of that Act (other than section 91) relating to nuisances shall extend and apply accordingly.

Power to  
establish a  
golf course.

**86.**—(1) The Corporation may for the purposes of a municipal golf course purchase or acquire any lands



A.D. 1925.

whether within or beyond the borough or appropriate any lands belonging to them and may hold and use for those purposes any lands so purchased acquired or appropriated and may upon any such lands lay out form equip alter maintain regulate manage and use a golf course with all proper and convenient houses pavilions works buildings and conveniences and may provide and use in connection therewith all proper and convenient appliances and apparatus: Provided that nothing in this section shall authorise the Corporation to appropriate for any such purpose as aforesaid—

(a) any lands for the time being held by them in their capacity of local education authority for the borough except with the consent of the Board of Education; or

(b) any other lands for the time being held by them except with the consent of the Minister of Health.

(2) The Corporation may make such charges as they think fit for the use of or for admission to any such golf course houses pavilions works buildings and conveniences as aforesaid and for the use of any such appliances and apparatus as aforesaid:

Provided that the public shall be entitled to use such golf course for the playing of golf thereon on payment of the charges for the time being prescribed by the Corporation for that purpose and subject to compliance with any byelaws for the time being in force.

(3) The Corporation may let to any club or association any such golf course houses pavilions works buildings and conveniences as aforesaid for such rent or rents as they may think fit: Provided that notwithstanding any such letting the public shall be entitled to the rights referred to in the proviso to subsection (2) of this section and that a condition to that effect shall be contained in any such lease as aforesaid.

(4)—(a) The Corporation may provide and sell and may enter into any agreement or arrangement with any person for the provision and sale at any such golf course or in any such house pavilion or building as aforesaid of refreshments of all kinds subject to the provisions of all Acts relating thereto and may also upon such terms and conditions and for such periods as they may think fit



A.D. 1925. — grant to any person the right so to provide and sell refreshments.

(b) The Corporation or any person appointed by them in that behalf may apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this subsection.

(5) The Corporation may exclude from any such golf course house pavilion or building as aforesaid all persons other than persons paying the charges for the use thereof for the time being prescribed by the Corporation.

(6) The Corporation may employ and pay all such officers and servants as they may from time to time deem necessary or convenient for the purposes of this section.

(7) The Corporation shall apply all moneys from time to time received by them under and in exercise of the powers of this section other than moneys (if any) received on capital account as follows (that is to say):—

First—In payment of the working and establishment expenses and cost of maintenance of such golf course houses pavilions works buildings and conveniences as aforesaid;

Secondly—In payment of the interest on moneys borrowed by the Corporation for the purposes of this section;

Thirdly—In providing the requisite instalments or sinking fund payments in respect of moneys so borrowed;

Fourthly—In extending and improving such golf course houses pavilions works buildings and conveniences as aforesaid;

and the Corporation shall carry to the credit of the borough fund so much of any balance remaining in any year as may in the opinion of the Corporation not be required to carry on the said golf course and to pay the current expenses connected therewith. Any deficiency in the revenue or receipts of the Corporation on account of such golf course shall be made good out of the borough fund.

(8) The Corporation may make and enforce byelaws with respect to such golf course houses pavilions works



buildings and conveniences as aforesaid and for regulating the use thereof. A.D. 1925.

(9) Nothing in this section shall authorise the exercise of the powers thereby conferred so as to contravene any covenant or condition subject to which any park or place of public resort or recreation is held by the Corporation.

87. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 are applicable. Confirmation of byelaws.

88. The provisions of the following sections of the Act of 1922 shall extend and apply to and for the purposes of this Act (that is to say):— Application of general provisions of Act of 1922.

Section 212 (Inquiries by Minister of Transport);

Section 215 (Informations by whom to be laid);

Section 217 (Recovery of demands);

Section 218 (Compensation how to be determined);

Section 220 (Incorporation of certain sections of Act of 1905);

Section 221 (Saving for indictments &c.);

Section 222 (Crown rights):

Provided that for the purposes of this Act section 104 (Inquiries by Local Government Board) of the Bolton Corporation Act 1905 applied by the said section 220 of the Act of 1922 shall be read and have effect as if the sum of five guineas had been therein referred to instead of the sum of three guineas.

89. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the borough fund and the borough rate but ultimately out of money borrowed under the authority of this Act for that purpose. Costs of Act.



A.D. 1925. The SCHEDULE referred to in the foregoing Act.

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### DESCRIPTIONS OF LANDS.

#### PART I.

(a) Lands and premises bounded on the north-west by Deansgate on the north-east by the north-eastern side of Black Horse Street on the south and south-east in part by Great Moor Street and in other part by the main line of the London Midland and Scottish Railway Company and the northern side of New Street and on the west and south-west in part by Moor Lane and in part by a line extending from the northern side of New Street to the north-western side of Great Moor Street and coinciding with the south-western side of the siding from the Crook Street goods station of the said railway company to their Deansgate goods station;

(b) Lands comprising Ormrod Street and those parts of Great Moor Street and Crook Street on which the said siding is laid between the north-western side of Great Moor Street and the southern side of Crook Street.

(c) Lands and premises bounded on the north by Ashburner Street on the east by the eastern side of Coronation Street on the south by Great Moor Street and on the west by Howell Croft South.

#### PART II.

Lands and premises bounded on the south-west by Manchester Road on the north-west partly by Lower Bridgeman Street partly by Bell Street and partly by land and premises occupied as stables by Messrs. Joseph Nall & Co. Ltd. on the north-east partly by Bell Street partly by Gorton Street and partly by land and premises forming part of Holy Trinity vicarage and on the south-east partly by land and premises forming part of Holy Trinity vicarage and partly by land and premises numbered 47 Manchester Road.



PART III.

A.D. 1925.

Lands and premises bounded on the south-west by Howell Croft North on the south by Victoria Square on the east by Old Hall Street North and on the north partly by the street or passage known as Howell's Yard and partly by the premises numbered 79 to 89 (odd numbers) Deansgate and 15 to 33 (odd numbers) Old Hall Street North.

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Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of  
Acts of Parliament.

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